

Court No. - 29

Case :- WRIT - C No. - 12591 of 2011

Petitioner :- Smt. Anoop

Respondent :- U.P. Power Corporation Ltd. Thru' Its Chairman And Others

Petitioner Counsel :- Rakesh Prasad

Respondent Counsel :- C.S.C., Anubhav Shukla

Hon'ble Sheo Kumar Singh,J.

Hon'ble Sabhajeet Yadav,J.

Shri Anubhav Shukla learned counsel appears for the respondent nos. 1 and 2.

As prayed by him, put up on 10.3.2011 as fresh before appropriate Court.

Order Date :- 7.3.2011

Iss

Court No. - 36

Case :- WRIT - C No. - 12591 of 2011

Petitioner :- Smt. Anoop

Respondent :- U.P. Power Corporation Ltd. Thru' Its Chairman And Others

Petitioner Counsel :- Rakesh Prasad

Respondent Counsel :- C.S.C., Anubhav Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

Case is called out in the revised list. None is present for the petitioner.

Put up as fresh on 17.3.2011.

Order Date :- 10.3.2011

Rmk.

Court No. - 36

Case :- WRIT - C No. - 12591 of 2011

Petitioner :- Smt. Anoop

Respondent :- U.P. Power Corporation Ltd. Thru' Its Chairman And Others

Petitioner Counsel :- Rakesh Prasad

Respondent Counsel :- C.S.C., Anubhav Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

It appears that checking was done in the premises of the petitioner. Theft of electricity was allegedly detected. A copy of the Checking Report dated 20.08.2010 has been filed as Annexure 5 to the Writ Petition.

Provisional Assessment (Annexure-4 to the writ petition) on the basis of Checking Report dated 20.08.2010 was made against the petitioner, and a notice dated 28.08.2010 (Annexure-2 to the Writ Petition) was issued to the petitioner.

The petitioner claims to have filed Objections dated 11.10.2010 (Annexure-3 to the Writ Petition).

It is inter-alia, averred in the Writ Petition that without complying with the requirements of the U.P. Electricity Supply Code, 2005 regarding disposal of objections to the Provisional Assessment by passing a speaking order after giving reasonable opportunity of hearing to the petitioner, the recovery proceeding has been initiated against the petitioner, and Recovery Citation dated 14.02.2011 (Annexure 6 to the Writ Petition) for Rs. 90,323/- plus other charges has been issued.

We have heard Sri Rakesh Prasad, learned counsel for the petitioner, Sri Anubhav Shukla, learned counsel for the respondents No. 1 and 2, and the learned Standing Counsel

appearing for the respondent Nos. 3 and 4, and perused the record.

Sri Rakesh Prasad, learned counsel for the petitioner submits that the mandatory requirements of the U.P. Electricity Supply Code, 2005 have not been complied with.

Sri Anubhav Shukla, learned counsel for the respondents No. 1 and 2, on the basis of instructions received by him, states that the Objections dated 11.10.2010 (Annexure-3 to the Writ Petition) were not received by the respondents No. 1 and 2. However, Sri Anubhav Shukla states that no final assessment order was passed in the matter of the petitioner. He further states that no demand notice before initiating recovery proceedings against the petitioner was issued.

From the above narration of the facts, it is evident that no final assessment order has ever been issued in the matter of the petitioner, and the recovery proceeding have been initiated without issuing any demand notice to the petitioner. It is not disputed that the petitioner has right to file appeal against the final assessment order, in case the same is issued by the authorities concerned.

It is also evident that there is dispute between the parties as to whether any objections were submitted by the petitioner against the aforesaid Provisional Assessment.

In the circumstances, we are of the view that the interest of justice would be not served, in case the Writ Petition is disposed of with the following direction:-

1. The petitioner will submit before the respondent No. 2, fresh objections to the Provisional Assessment along with certified copy of this order and an amount of Rs. 25000/- within five weeks from

today.

2. The respondent No. 2 will proceed to decide the objections submitted by the petitioner expeditiously, preferably, within a period of six weeks' from the receipt of the such objections.

3. For a period of three months or till the disposal of the objections by the respondent No. 2, whichever is earlier, the recovery proceedings for the balance amount against the petitioner pursuant to the Citation dated 14.02.2011 (Annexure-6 to the Writ Petition), will remain stayed.

4. In the event of default of the part of the petitioner in submitting the documents or making the deposit, as mentioned in Condition No. 1 above, within the period specified, this order will stand automatically vacated and it will be open to the respondents to proceed against the petitioner in accordance with law.

The Writ Petition is disposed of accordingly, with the aforesaid directions.

Order Date :- 17.3.2011
v.k.updh.